

CHAPTER I.

The Statutes.

The Court of Chancery for Upper Canada, as at present constituted, owes its existence to, and is governed by, the following mentioned Enactments of the Provincial Legislature.

Court established.

The first Establishment of the Court was by an Act of the Parliament of Upper Canada,—7th Wm. 4, ch. 2, dated the 4th March, 1837.

Statute of 1837.

This Act created a Court, to be called "The Court of Chancery for the Province of Upper Canada", of which the Governor of the Province was to be Chancellor, but the Judicial powers of the Court, "both Legal and Equitable", were to be exercised by the Vice Chancellor.

A Vice Chancellor to be the Judge.

Sec. 2, enacts, that the Court shall have Jurisdiction, and "*possess the like powers and authority as by the laws of England are possessed by the Court of Chancery in England*" in respect of the following matters:—

Same powers as the Court in England.

1. "In all cases of Fraud ;
2. "In all matters relating to Trusts ;
3. "In all matters relating to Executors ; and
4. "Administrators ;
5. "In all matters relating to Mortgages ;
6. "In Dower.
7. "In all matters relating to Infants, Idiots, and Lunatics, and their Estates, except where special provision hath been or may hereafter be made with respect to them or either of them by any law of this Province ;

Matters over which the Court has Jurisdiction.